

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
7. ISSUED BY	CODE	8. ADDRESS OFFER TO (If other than item 7)		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____
(Hour) (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE (NO COLLECT CALLS)		C. EMAIL ADDRESS
		AREA CODE	NUMBER	EXTENSION

11. TABLE OF CONTENTS

(X)	SECTION	DESCRIPTION	PAGE(S)	(X)	SECTION	DESCRIPTION	PAGE(S)
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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION		

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

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Previous edition is unusable

STANDARD FORM 33 (REV. 12/2022)
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

DUSN (M) ITD IT-Related Support

POINT OF CONTACT

The point of contact (POC) for this Request for Quotations (RFQ) is Tara Baker, who may be contacted via telephone at (771)229-3548 or via e-mail at tara.y.baker.civ@us.navy.mil.

SEAPORT-NxG TASK ORDER

This solicitation is being solicited among SeaPort-NxG contract holders only, and the anticipated task order will be issued against the successful quoter's SeaPort base contract. Therefore, the Government will only consider Step One submissions and non-cost and cost quotations of SeaPort-NxG contract holders. Any submission received from a non-SeaPort contract holder will not be considered and the contractor will be notified of its exclusion on this basis.

SOLICITATION QUESTIONS

Potential quoters are encouraged to carefully review all solicitation requirements and, if they have questions concerning the solicitation, should submit any questions concerning the RFQ via email NO LATER THAN 12:00 PM Eastern Time (ET) on 18 May 2026. Responses will be provided via email and, if applicable, revisions to the solicitation will be incorporated via an amendment.

The incumbent for this requirement is Booz Allen Hamilton, Inc under SeaPort-NxG Task Order Number N0018920F3058.

This solicitation is a RFQ. If appearing in this solicitation, the term "RFP" shall mean "RFQ", the word "proposal" or "offer" shall mean "quote", the word "offeror" shall mean "quoter", and the word "contract" shall mean "task order."

All terms and conditions of the base contract shall apply to this RFQ and task order.

Quote Preparation:

The quote submission shall clearly state and acknowledge every amendment number issued (if applicable) during the solicitation phase. This solicitation does not commit the Government to pay for the preparation and submission of a quote. The Contracting Officer will make an award selection using a two-step solicitation and evaluation process. All Step 2 submissions, inclusive of the non-cost and cost quotes, shall remain valid for a minimum of 270 days from the solicitation closing date.

Fair Opportunity Two-Step Solicitation and Evaluation Process for Task Order Issuance

The Navy will provide interested sources a fair opportunity in accordance with FAR 16.507 using the procedures and evaluation factors described in this solicitation. It is emphasized that this is a FAR Subpart 16.5 fair opportunity process intended to streamline the source selection and be minimally burdensome for both the Navy and IDIQ contract holders interested in competing for this requirement. The policies and procedures of FAR Subpart 15.2 and Subpart 15.3 do not apply to this source selection. While not an all-inclusive list, some examples of FAR Subpart 15.2 and Subpart 15.3 requirements that do not apply are the late is late rule, competitive range determinations, the rules for negotiations, formal evaluation plans, and formal evaluation documentation. The Contracting Officer will make the source selection using the following two-step process.

Step One – Viability Determination

Step One Submission: Interested sources shall submit, on no more than three (3) single-sided pages, a description of their experience on prior contracts that they consider similar in size and scope as the requirements described in the Performance Work Statement (PWS). Font shall be "Times New Roman" with a point size of 10 or greater. Graphics, tables, headers and footers, if included, shall use a font size of 10 or greater. Interested

sources should use their best judgment on how best to demonstrate through their submission that they are a viable competitor. For example, an interested source with relatively limited experience related to the PWS could address how it has the commitment of personnel or other contractors with more relevant experience.

In addition, interested sources shall provide (1) verification that they are a current SeaPort-NxG contract holder, including the SeaPort contract number; (2) verification that they possess an active Facility Clearance Level (FCL) at the Secret level at the time of Step One submission and; (3) attest that the prime contractor has a facility within 25 miles of the National Capital Region (NCR). An interested source that is not a current SeaPort-NxG contract holder; does not possess an active FCL at the Secret level at the time of Step One submission; does not have a facility within 25 miles of the NCR; and/or does not demonstrate that they have experience that is similar in size and scope to the requirements described in the PWS will not be determined to be a viable competitor and will not be invited to submit a non-cost and cost quotation as part of Step Two of the solicitation and evaluation process.

Step One submissions shall be received by the solicitation POC no later than 1200pm Eastern Time on 19 May 2026. Responses shall be sent via email to Tara Baker at tara.y.baker.civ@us.navy.mil. The subject line of the email submission shall read: [CONTRACTOR NAME] Step One submission in response to N0018926RB003.

Step One Evaluation: The Contracting Officer will evaluate each submission and determine which interested sources are viable competitors for award in accordance with the terms of the solicitation. An interested source will be determined to be viable if the experience provided in its Step One submission demonstrates the interested source's ability to provide services consistent with the requirements of the PWS. The Contracting Officer may communicate with an interested source, without regard to the rules of FAR Subpart 15.2 or Subpart 15.3 concerning competitive range determinations and negotiations, if such communications will enhance the Contracting Officer's determination of whether the interested source is a viable competitor for award. An interested source could be determined to be nonviable because of its experience relative to other interested sources. Upon conclusion of the Government's evaluation of Step One submissions, the Contracting Officer will notify those interested sources determined to be nonviable that they are eliminated from further consideration, and invited interested sources determined to be viable to submit a quote in accordance with instructions for Step Two submission requirements.

Step Two Submission: See Section L. Step Two submissions shall be received no later than the time and date specified in block 9 of the SF33.

Step Two Evaluation: See Section M.

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

LEVEL OF EFFORT (COST TYPE CONTRACT)

(a) The level of effort for the performance of this task order during the period from the start of performance to approximately twelve months thereafter is based upon 92,160 estimated manhours of direct labor. If all options are exercised by the Government, the level of effort for the performance of this task order will be increased by an additional 414,720 estimated manhours of direct labor, for a total level of effort of 506,880 estimated manhours of direct labor (hereinafter referred to as the "Estimated Total Hours").

(b) The estimated composition by labor category of the Estimated Total Hours is as follows:

LEVEL OF EFFORT EXCLUDING TASK 4.4 (O&M,N):

- CLINs 2001, 2003, 2005, 2007, 2009 & 2011

[illegible]

Senior Database Administrator	3840	3840	3840	3840	3840	1920	21,120
Sharepoint Administrator	1920	1920	1920	1920	1920	960	10,560
Technical Writer	1920	1920	1920	1920	1920	960	10,560
Senior Application Developer	7680	7680	7680	7680	7680	3840	42,240
Application Developer	5760	5760	5760	5760	5760	2880	31,680
Web Designer	3840	3840	3840	3840	3840	1920	21,120
Web Developer	3840	3840	3840	3840	3840	1920	21,120
Total	84,480	84,480	84,480	84,480	84,480	42,240	464,640

LEVEL OF EFFORT FOR TASK 4.4 (

RDT&E):

CLINs 2002, 2004, 2006, 2008, 2010 & 2012

LEVEL OF EFFORT EXCLUDING TASK 4.4 (O&M,N):	Base	OP I	OP II	OP III	OP IV	OP 6-Month 52.217-8	TOTAL
Senior Application Developer * RDT&E *	1920	1920	1920	1920	1920	960	10,560
Application Developer * RDT&E*	1920	1920	1920	1920	1920	960	10,560
Senior Database Administrator * RDT&E *	1920	1920	1920	1920	1920	960	10,560
Database Administrator * RDT&E *	1920	1920	1920	1920	1920	960	10,560

Total	7680	7680	7680	7680	7680	3840	42,240

(c) The Estimated Total Hours include overtime* and subcontracting hours but exclude holidays, sick leave, vacation days and other absences.

(d) The number of manhours expended per month shall be commensurate with the effort ordered and the required delivery date of such effort. The number of manhours expended per month may fluctuate in pursuit of the technical objective, provided that such fluctuation does not result in the utilization of the total manhours of effort prior to the expiration of the term thereof. The number of manhours for any labor category may be utilized by the contractor for any other labor category if necessary in performance of the contract.

(e) The contractor shall not be obligated to continue performance beyond the Estimated Total Hours, except that the Contracting Officer may require the contractor to continue performance in excess of the Estimated Total Hours until the total estimated cost has been expended. The government will not be obligated to pay fee on any hours expended in excess of the Estimated Total Hours. Any hours expended in excess of the Estimated Total Hours shall be excluded from all fee computations and adjustments. The Contracting Officer may also require the contractor to continue performance in excess of the total estimated cost until the Estimated Total Hours have been expended. In no event, however, will the Contracting Officer, pursuant to this paragraph (e), require the contractor to continue performance in excess of the Estimated Total hours if the Contracting Officer is requiring or has required the contractor to continue performance in excess of the total estimated cost. Nor will the Contracting Officer, pursuant to this paragraph (e), require the contractor to continue performance in excess of the total estimated cost if the Contracting Officer is requiring or has required the contractor to continue performance in excess of the Estimated Total Hours. The Contracting Officer may extend the period of performance in order to expend either the total estimated cost or the Estimated Total Hours. If this contract is subject to the Service Contract Act, in no event will the Contracting Officer, pursuant to this paragraph (e), extend the period of performance such that the period of performance, as extended, will exceed five years.

(f) If at any time during the performance of this task order the contractor expends in excess of 85% of the available estimated manhours of direct labor, the contractor shall immediately notify the Contracting Officer in writing. Nothing herein shall be construed to alter or waive any of the rights or obligations of either party pursuant to the clause entitled "Limitation of Cost" and/or "Limitation of Funds."

(End of Provision)

PAYMENT OF FIXED FEE

The fixed fee for work performed under this order is \$** provided that approximately ** hours of technical effort are employed by the contractor in performance of this order. If substantially fewer than ** hours of technical effort are employed, the fixed fee shall be equitably reduced to reflect the reduction of work. The Government shall make monthly payments of the fixed fee at the rate of \$** per direct labor hour invoiced by the contractor. All payments shall be in accordance with the provisions of FAR 52.216-8, "Fixed Fee," and FAR 52.216-7, "Allowable Cost and Payment." Payments shall be subject to the withholding provisions of Paragraph (b) of FAR 52.216-8, provided that the total of all such monthly payment shall not exceed eighty-five (85%) percent of the fixed fee. Any balance of fixed fee due the contractor shall be paid to the Contractor, and any over-payment of fixed fee shall be repaid to the Government by the Contractor, or otherwise credited to the Government at the time of final payment.

**To be determined at time of award.

COMPETITIVE OVERTIME (UNCOMPENSATED OVERTIME) (OCT 1992)

Uncompensated overtime will only be considered for evaluation purposes as set forth in the Section M provision entitled "Evaluation Criteria and the Basis for Award." If an offeror decides to include uncompensated overtime in its proposal, the FAR clause at 52.237-

10 IDENTIFICATION OF UNCOMPENSATED OVERTIME will apply during the performance of any resultant task order.

(End of Provision)

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
2001	Base Period / IT & IT-Related Support Services. Services. IAW the PWS (excluding Task 4.4 for Development Services) (O&MN,N) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
2002	Base Period / PWS 4.4 Developmental Services (RDT&E) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 2003	Option I / IT & IT-Related Support Services IAW the PWS (excluding Task 4.4 for Developing Services) (O&MN,N) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 2004	Option I / PWS 4.4 Developmental Services (RDT&E) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 2005	Option II / IT & IT-Related Support Services IAW the PWS (excluding Task 4.4 for Developing Services) (O&MN,N) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 2006	Option II / PWS 4.4 Developmental Services (RDT&E) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 2007	Option III / IT & IT-Related Support Services IAW the PWS (excluding Task 4.4 for Developing Services) (O&MN,N) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		

Option Line Item 2008	Option III / PWS 4.4 Developmental Services (RDT&E) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 2009	Option IV/ IT & IT-Related Support Services IAW the PWS (excluding Task 4.4 for Developing Services) (O&MN,N) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 2010	Option IV / PWS 4.4 Developmental Services (RDT&E) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 2011	FAR 52.217-8 Option V/ IT & IT-Related Support Services IAW the PWS (excluding Task 4.4 for Developing Services) (O&MN,N) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 2012	FAR 52.217-8 Option V / PWS 4.4 Developmental Services (RDT&E) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
3001	ODC's in support of CLIN's 2001 & 2002 (O&MN,N) Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 3003	ODC's in support of CLIN's 2003 & 2004 (O&MN,N) Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 3005	ODC's in support of CLIN's 2005 & 2006 (O&MN,N) Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 3007	ODC's in support of CLIN's 2007 & 2008 (O&MN,N) Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 3009	ODC's in support of CLIN's 2009 & 2010 (O&MN,N)	1	Lot		

	Pricing Arrangement: Cost No Fee				
Option Line Item 3011	ODC's in support of CLIN's 2011 & 2012 (O&MN,N) Pricing Arrangement: Cost No Fee	1	Lot		
4001	Base Period / Technical Data. Not Separately Priced. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 4003	Option I / Technical Data. Not Separately Priced. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 4005	Option II / Technical Data. Not Separately Priced. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 4007	Option III / Technical Data. Not Separately Priced. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 4009	Option IV / Technical Data. Not Separately Priced. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 4011	FAR 52.217-8 Option V / Technical Data. Not Separately Priced. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		

Section C - Description/Specifications/Statement of Work

See Attachment 01 for the Performance Work Statement as listed in Section J.

Requirements

IT-Related Support Services - Seaport Follow-On.

Section D - Packaging and Marking

All Deliverables shall be packaged and marked IAW Best Commercial Practice.

Section E - Inspection and Acceptance

INSPECTION AND ACCEPTANCE (SERVICES) (OCT 1992)

Inspection and acceptance of services to be furnished hereunder shall be made, upon completion of the services, by the requiring activity.

Section F - Deliveries or Performance

Overall Contract Delivery Period

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
2001	Period of Performance From 16 Jul 2026 To 15 Jul 2027	1 Lot	
2002	Period of Performance From 16 Jul 2026 To 15 Jul 2027	1 Lot	
Option Line Item 2003	Period of Performance From 16 Jul 2027 To 15 Jul 2028	1 Lot	
Option Line Item 2004	Period of Performance From 16 Jul 2027 To 15 Jul 2028	1 Lot	
Option Line Item 2005	Period of Performance From 16 Jul 2028 To 15 Jul 2029	1 Lot	
Option Line Item 2006	Period of Performance From 16 Jul 2028 To 15 Jul 2029	1 Lot	
Option Line Item 2007	Period of Performance From 16 Jul 2029 To 15 Jul 2030	1 Lot	
Option Line Item 2008	Period of Performance From 16 Jul 2029 To 15 Jul 2030	1 Lot	
	Period of Performance From	1 Lot	

Option Line Item 2009	16 Jul 2030 To 15 Jul 2031		
Option Line Item 2010	Period of Performance From 16 Jul 2030 To 15 Jul 2031	1 Lot	
Option Line Item 2011	Period of Performance From 16 Jul 2031 To 15 Jan 2032	1 Lot	
Option Line Item 2012	Period of Performance From 16 Jul 2031 To 15 Jan 2032	1 Lot	
3001	Period of Performance From 16 Jul 2026 To 15 Jul 2027	1 Lot	
Option Line Item 3003	Period of Performance From 16 Jul 2027 To 15 Jul 2028	1 Lot	
Option Line Item 3005	Period of Performance From 16 Jul 2028 To 15 Jul 2029	1 Lot	
Option Line Item 3007	Period of Performance From 16 Jul 2029 To 15 Jul 2030	1 Lot	
Option Line Item 3009	Period of Performance From 05 Jul 2030 To 04 Jul 2031	1 Lot	
Option Line Item 3011	Period of Performance From 16 Jul 2031 To 15 Jan 2032	1 Lot	
4001	Period of Performance From 16 Jul 2026	1 Lot	

	To 15 Jul 2027		
Option Line Item 4003	Period of Performance From 16 Jul 2027 To 15 Jul 2028	1 Lot	
Option Line Item 4005	Period of Performance From 16 Jul 2028 To 15 Jul 2029	1 Lot	
Option Line Item 4007	Period of Performance From 16 Jul 2029 To 15 Jul 2030	1 Lot	
Option Line Item 4009	Period of Performance From 16 Jul 2030 To 15 Jul 2031	1 Lot	
Option Line Item 4011	Period of Performance From 16 Jul 2031 To 15 Jan 2032	1 Lot	

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

=====
(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

=====
(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	==
Issue By DoDAAC	==
Admin DoDAAC	==
Inspect By DoDAAC	==
Ship To Code	==
Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	==
Accept at Other DoDAAC	==
LPO DoDAAC	==

DCAA Auditor DoDAAC	==
Other DoDAAC(s)	==

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

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(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

APPOINTMENT OF CONTRACTING OFFICER'S REPRESENTATIVE (SEP 2015)

- (a) The Contracting Officer hereby designates the following individual as Contracting Officer's Representative (s) (COR) for this contract:

To be provided at time of award.

- (b) In the absence of the COR named above, all responsibilities and functions assigned to the COR shall be the responsibility of the alternate COR acting on behalf of the COR. The Contracting Officer hereby appoints the following individual as the alternate COR:

To be determined.

Section I - Contract Clauses

52.232-10 Payments under Fixed-Price Architect-Engineer Contracts.

As prescribed in [32.111](#)(c)(1), insert the following clause:

Payments under Fixed-Price Architect-Engineer Contracts (Apr 2010)

- (a) Estimates *shall* be made monthly of the amount and value of the work and services performed by the Contractor under this contract which meet the standards of quality established under this contract. The estimates, along with any supporting data required by the *Contracting Officer*, *shall* be prepared by the Contractor and submitted along with its voucher.
- (b) After receipt of each substantiated voucher, the Government *shall* pay the voucher as approved by the *Contracting Officer* or authorized representative. The *Contracting Officer* *shall* require a withholding from amounts due under paragraph (a) of this clause of up to 10 percent only if the *Contracting Officer* determines that such a withholding is necessary to protect the Government's interest and ensure satisfactory completion of the contract. The amount withheld *shall* be determined based upon the Contractor's performance record under this contract. Whenever the *Contracting Officer* determines that the work is substantially complete and that the amount retained is in excess of the amount adequate for the protection of the Government, the *Contracting Officer* *shall* release the excess amount to the Contractor.
- (c) Upon satisfactory completion by the Contractor and final acceptance by the *Contracting Officer* of all the work done by the Contractor under the "Statement of *Architect-Engineer Services*", the Contractor will be paid the unpaid balance of any money due for work under the statement, including all withheld amounts.
- (d) Before final payment under the contract, or before settlement upon termination of the contract, and as a condition precedent thereto, the Contractor *shall* execute and deliver to the *Contracting Officer* a release of all *claims* against the Government arising under or by virtue of this contract, other than any *claims* that are specifically excepted by the Contractor from the operation of the release in amounts stated in the release.
- (e) Notwithstanding any other provision in this contract, and specifically paragraph (b) of this clause, progress payments *shall* not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR [subpart 2.1](#), including *contract modifications* for additional *supplies* or services, but not including *contract modifications* that are within the scope and under the terms of the contract, such as *contract modifications* issued pursuant to the Changes clause, or funding and other administrative changes.

(End of clause)

52.232-20 Limitation of Cost.

As prescribed in [32.706-2](#)(a), insert the following clause. The 60-day period *may* be varied from 30 to 90 days and the 75 percent from 75 to 85 percent. "Task Order" or other appropriate designation *may* be substituted for "Schedule" wherever that word appears in the clause:

Limitation of Cost (Apr 1984)

(a) The parties estimate that performance of this contract, exclusive of any fee, will not cost the Government more than (1) the estimated cost specified in the Schedule or, (2) if this is a cost-sharing contract, the Government's share of the estimated cost specified in the Schedule. The Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within the estimated cost, which, if this is a cost-sharing contract, includes both the Government's and the Contractor's share of the cost.

(b) The Contractor *shall* notify the *Contracting Officer in writing* whenever it has reason to believe that-

(1) The costs the Contractor expects to incur under this contract in the next 60 days, when added to all costs previously incurred, will exceed 75 percent of the estimated cost specified in the Schedule; or

(2) The total cost for the performance of this contract, exclusive of any fee, will be either greater or substantially less than had been previously estimated.

(c) As part of the notification, the Contractor *shall* provide the *Contracting Officer* a revised estimate of the total cost of performing this contract.

(d) Except as required by other provisions of this contract, specifically citing and stated to be an exception to this clause-

(1) The Government is not obligated to reimburse the Contractor for costs incurred in excess of (i) the estimated cost specified in the Schedule or, (ii) if this is a cost-sharing contract, the estimated cost to the Government specified in the Schedule; and

(2) The Contractor is not obligated to continue performance under this contract (including actions under the Termination clause of this contract) or otherwise incur costs in excess of the estimated cost specified in the Schedule, until the *Contracting Officer* (i) notifies the Contractor *in writing* that the estimated cost has been increased and (ii) provides a revised estimated total cost of performing this contract. If this is a cost-sharing contract, the increase *shall* be allocated in accordance with the formula specified in the Schedule.

(e) No notice, communication, or representation in any form other than that specified in paragraph (d)(2) of this clause, or from any person other than the *Contracting Officer*, *shall* affect this contract's estimated cost to the Government. In the absence of the specified notice, the Government is not obligated to reimburse the Contractor for any costs in excess of the estimated cost or, if this is a cost-sharing contract, for any costs in excess of the estimated cost to the Government specified in the Schedule, whether those excess costs were incurred during the course of the contract or as a result of termination.

(f) If the estimated cost specified in the Schedule is increased, any costs the Contractor incurs before the increase that are in excess of the previously estimated cost *shall* be allowable to the same extent as if incurred afterward, unless the *Contracting Officer* issues a termination or other notice directing that the increase is solely to cover termination or other specified expenses.

(g) *Change orders shall* not be considered an authorization to exceed the estimated cost to the Government specified in the Schedule, unless they contain a statement increasing the estimated cost.

(h) If this contract is terminated or the estimated cost is not increased, the Government and the Contractor *shall* negotiate an equitable distribution of all property produced or purchased under the contract, based upon the share of costs incurred by each.

(End of clause)

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		

52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	Apr 2026
52.245-1	Government Property.	Sep 2021
52.245-9	Use and Charges.	Apr 2012

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7023	Reporting Requirements for Contracted Services.	Jul 2021		

FAR Clauses Incorporated by Full Text

52.217-8 Option to Extend Services. (Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days of task order expiration.

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Tailored) (Jun 2026)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days of task order expiration; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

DFARS Clauses Incorporated by Full Text

	Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services. (DEVIATION 2026-O0036)	(Feb 2026)	Deviation 2026-O0036	(Feb 2026)
252.227-7989				

RIGHTS IN TECHNICAL DATA, COMPUTER SOFTWARE, AND COMPUTER SOFTWARE DOCUMENTATION--OTHER THAN COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (DEVIATION 2026-O0036) (FEB 2026)

(a) *Definitions.* As used in this clause--

"Commercial computer software" means software developed or regularly used for nongovernmental purposes which--

(1) Has been sold, leased, or licensed to the public;

(2) Has been offered for sale, lease, or license to the public;

(3) Has not been offered, sold, leased, or licensed to the public but will be available for commercial sale, lease, or license in time to satisfy the delivery requirements of this contract; or

(4) Satisfies a criterion expressed in paragraph (1), (2), or (3) of this definition and would require only minor modification to meet the requirements of this contract.

"Computer database" means a collection of data recorded in a form capable of being processed by a computer. The term does not include computer software.

"Computer program" means a set of instructions, rules, or routines recorded in a form that is capable of causing a computer to perform a specific operation or series of operations.

"Computer software" means computer programs, source code, source code listings, object code listings, design details, algorithms, processes, flow charts, formulae and related material that would enable the software to be reproduced, recreated, or recompiled. Computer software does not include computer databases or computer software documentation.

"Computer software documentation" means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

"Covered Government support contractor" means a contractor (other than a litigation support contractor covered by 252.204-7014) under a contract, the primary purpose of which is to furnish independent and impartial advice or technical assistance directly to the Government in support of the Government's management and oversight of a program or effort, rather than to directly furnish an end item or service to accomplish a program or effort, provided that the contractor--

(1) Is not affiliated with the prime contractor or a first-tier subcontractor on the program or effort, or with any direct competitor of such prime contractor or any such first-tier subcontractor in furnishing end items or services of the type developed or produced on the program or effort; and

(2) Receives access to technical data or computer software for performance of a Government contract that contains the clause at 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

"Detailed manufacturing or process data" means technical data that describe the steps, sequences, and conditions of manufacturing, processing or assembly used by the manufacturer to produce an item or component or to perform a process.

"Developed" means--

(1) (Applicable to technical data other than computer software documentation.) An item, component, or process exists and is workable. Thus, the item or component must have been constructed or the process practiced. Workability is generally established when the item, component, or process has been analyzed or tested sufficiently to demonstrate to reasonable people skilled in the applicable art that there is a high probability that it will operate as intended. Whether, how much, and what type of analysis or testing is required to establish workability depends on the nature of the item, component, or process, and the state of the art. To be considered "developed," the item, component, or process need not be at the stage where it could be offered for sale or sold on the commercial market, nor must the item, component, or process be actually reduced to practice within the meaning of Title 35 of the United States Code;

(2) A computer program has been successfully operated in a computer and tested to the extent sufficient to demonstrate to reasonable persons skilled in the art that the program can reasonably be expected to perform its intended purpose;

(3) Computer software, other than computer programs, has been tested or analyzed to the extent sufficient to demonstrate to reasonable persons skilled in the art that the software can reasonably be expected to perform its intended purpose; or

(4) Computer software documentation the contractor must deliver under a contract has been written, in any medium, in sufficient detail to comply with requirements under that contract.

"Developed exclusively at private expense" means development was accomplished entirely with costs charged to indirect cost pools, costs not allocated to a Government contract, or any combination thereof.

(1) Private expense determinations should be made at the lowest practicable level.

(2) Under fixed-price contracts, when total costs are greater than the firm-fixed-price or ceiling price of the contract, the additional development costs necessary to complete development shall not be considered when determining whether development was at Government, private, or mixed expense.

"Developed exclusively with Government funds" means development was not accomplished exclusively or partially at private expense.

"Developed with mixed funding" means development was accomplished partially with costs charged to indirect cost pools and/or costs not allocated to a government contract, and partially with costs charged directly to a government contract.

"Form, fit, and function data" means technical data that describe the required overall physical, functional, and performance characteristics (along with the qualification requirements, if applicable) of an item, component, or process to the extent necessary to permit identification of physically and functionally interchangeable items.

"Generated" means, with regard to technical data or computer software, first created in the performance of this contract.

"Government purpose" means any activity in which the United States Government is a party, including cooperative agreements with international or multi-national defense organizations, or sales or transfers by the United States Government to foreign governments or international organizations. Government purposes include competitive procurement, but do not include the rights to use, modify, reproduce, release, perform, display, or disclose technical data, computer software, or computer software documentation for commercial purposes or authorize others to do so.

"Government purpose rights" means the rights to--

(1) Use, modify, reproduce, release, perform, display, or disclose technical data, computer software, or computer software documentation within the Government without restriction; and

(2) Release or disclose technical data, computer software, or computer software documentation outside the Government and authorize persons to whom release or disclosure has been made to use, modify, reproduce, release, perform, display, or disclose that data or software for United States Government purposes.

"Limited rights" means the rights to use, modify, reproduce, release, perform, display, or disclose technical data, in whole or in part, within the Government. The Government may not, without the written permission of the party asserting limited rights, release or disclose the technical data outside the Government, use the technical data for manufacture, or authorize the technical data to be used by another party, except that the Government may reproduce, release, or disclose such data or authorize the use or reproduction of the data by persons outside the Government if--

(1) The reproduction, release, disclosure, or use is--

(i) Necessary for emergency repair and overhaul; or

(ii) A release or disclosure to--

(A) A covered Government support contractor in performance of its covered Government support contract for use, modification, reproduction, performance, display, or release or disclosure to a person authorized to receive limited rights technical data; or

(B) A foreign government, of technical data other than detailed manufacturing or process data, when use of such data by the foreign government is in the interest of the Government and is required for evaluational or informational purposes;

(2) The recipient of the technical data is subject to a prohibition on the further reproduction, release, disclosure, or use of the technical data; and

(3) The contractor or subcontractor asserting the restriction is notified of such reproduction, release, disclosure, or use.

"Minor modification" means a modification that does not significantly alter the nongovernmental function or purpose of the software or is of the type customarily provided in the commercial marketplace.

"Other than commercial computer software" means software that does not qualify as commercial computer software under the definition of "commercial computer software" of this clause.

"Restricted rights" apply only to other than commercial computer software and mean the Government's rights to--

(1) Use a computer program with one computer at one time. The program may not be accessed by more than one terminal or central processing unit or time shared unless otherwise permitted by this contract;

(2) Transfer a computer program to another Government agency without the further permission of the Contractor if the transferor destroys all copies of the program and related computer software documentation in its possession and notifies the licensor of the transfer. Transferred programs remain subject to the provisions of this clause;

(3) Make a reasonable number of copies of the computer software required for the purposes of safekeeping (archive), backup, modification, or other activities authorized in paragraphs (1), (2), (4) and (5) of this definition;

(4) Modify computer software provided that the Government may--

(i) Use the modified software only as provided in paragraphs (1) and (3) of this definition; and

(ii) Not release or disclose the modified software except as provided in paragraphs (2) and (5) of this clause;

(5) Use, modify, reproduce, perform, display, or release or disclose the computer software, and permit contractors, subcontractors, or covered Government support contractors to do so, for purposes set forth in subparagraph (i) of this paragraph, subject to the conditions set forth in subparagraphs (ii) of this paragraph:

(i)(A) In performance of service contracts (see FAR 37.101), to diagnose and correct deficiencies, to modify the software to enable a computer program to be combined with, adapted to, or merged with other computer programs, or when necessary to respond to urgent tactical situations, provided that the Government notifies the party which has granted restricted rights that any such release or disclosure to particular contractors or subcontractors was made;

(B) To perform emergency repairs or overhaul of items or components procured under this or a related contract, when necessary to perform such repairs or overhaul; or

(C) For the management and oversight of a program or effort by a person authorized to receive restricted rights computer software, including in the performance of covered Government support contracts.

(ii)(A) Any contractor, subcontractor, or covered Government support contractor receiving access to the software for the purposes of subparagraphs (i), (ii), or (iii) of this paragraph shall be subject to the use and nondisclosure agreement at 227.7103-7 or be performing a Government contract that contains the clause at 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends;

(B) The Government must not permit any recipient of the software under this paragraph to decompile, disassemble, or reverse engineer the software, or use software decompiled, disassembled, or reverse engineered by the Government pursuant to paragraph (4) of this definition, for any other purpose; and

(C) Any use, modification, reproduction, performance, display, release, or disclosure of the computer software under this paragraph remains subject to the limitations in paragraphs (1) through (4) of this definition.

"Small Business Innovation Research/Small Business Technology Transfer (SBIR/STTR) data" means all technical data or computer software developed or generated in the performance of a phase I, II, or III SBIR/STTR contract or subcontract.

"Technical data" means recorded information, regardless of the form or method of the recording, of a scientific or technical nature (including computer software documentation). The term does not include computer software or financial, administrative, cost or pricing, or management information, or information incidental to contract administration.

"Unlimited rights" means rights to use, modify, reproduce, perform, display, release, or disclose technical data, computer software, or computer software documentation in whole or in part, in any manner, and for any purpose whatsoever, and to have or authorize others to do so.

(b) *Applicability.* (1) Except as provided in paragraph (b)(2) of this clause--

(i) This clause governs all technical data related to other than commercial products or commercial services or to any portion of a commercial product or commercial service that was developed in any part at Government expense;

(ii) This clause governs all other than commercial computer software or other than commercial computer software documentation; and

(iii) The clause at DFARS 252.227-7990, Technical Data--Commercial Products and Commercial Services, governs the technical data related to any portion of a commercial product or commercial service that was developed exclusively at private expense.

(2) The clause at DFARS 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, governs technical data that are SBIR/STTR data.

(c) *Rights in technical data and computer software.* The Contractor grants or shall obtain for the Government the following royalty free, worldwide, nonexclusive, irrevocable license rights:

(1) *Unlimited rights.* The Government shall have unlimited rights in technical data, computer software, or computer software documentation that are--

(i) Data related to an item, component, or process which has been or will be developed exclusively with Government funds;

(ii) Studies, analyses, test data, or similar data produced for this contract, when the study, analysis, test, or similar work was specified as an element of performance;

(iii) Technical data created exclusively with Government funds in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes;

(iv) Form, fit, and function data;

(v) Technical data necessary for installation, operation, maintenance, or training purposes (other than detailed manufacturing or process data);

(vi) Government-furnished corrections or changes to--

(A) Technical data furnished to the Contractor by the Government; or

(B) Computer software or computer software documentation;

(vii) Data, computer software, or computer software documentation that is publicly available or previously released or disclosed by the Contractor or subcontractor without restrictions on further use, release or disclosure, other than a release or disclosure resulting from the sale, transfer, or other assignment of interest in the technical data to another party or the sale or transfer of some or all of a business entity or its assets to another party;

(viii) Data, computer software, or computer software documentation in which the Government has obtained unlimited rights under another Government contract or as a result of negotiations;

(ix) Data furnished to the Government, under this or any other Government contract or subcontract, with--

(A) Government purpose license rights or limited rights and the restrictive condition(s) has/have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such data for commercial purposes has expired; or

(x) Computer software developed exclusively with Government funds;

(xi) Computer software documentation the contractor must deliver under this contract; or

(xvii) Computer software or computer software documentation furnished to the Government, under this or any other Government contract or subcontract with--

(A) Restricted rights in computer software, limited rights in technical data, or government purpose license rights and the restrictive conditions have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such software or documentation for commercial purposes has expired.

(2) *Government purpose rights.* (i) The Government shall have government purpose rights for a 5-year period, or such other period as may be negotiated, in technical data or computer software--

(A) Related to items, components, or processes developed with mixed funding except when the Government is entitled to unlimited rights in such data or software as provided in paragraphs (c)(1)(ii), (c)(1)(iv) through (c)(1)(ix), and (c)(1)(xii) through (c)(1)(x)(v)(i) of this clause; or

(B) Created with mixed funding in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes.

(ii) The 5-year period, or such other period as may have been negotiated, shall begin upon execution of the contract, subcontract, letter contract (or similar contractual instrument), contract modification, or option exercise that required development of the items, components, or processes, development of the computer software, or creation of the data described in paragraph (c)(2)(i)(B) of this clause. Upon expiration of the 5-year or other negotiated period, the Government shall have unlimited rights in the technical data or computer software.

(iii) The Government will not release or disclose technical data or computer software in which it has government purpose rights unless--

(A) Prior to release or disclosure, the intended recipient completes the nondisclosure agreement at DFARS 227.7103-7; or

(B) The recipient is a Government contractor receiving access to the data or software for performance of a Government contract that contains the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

(iv) The Contractor has the exclusive right, including the right to license others, to use technical data or computer software in which the Government has obtained government purpose rights under this contract for any commercial purpose during the time period specified in the government purpose rights legend prescribed in paragraph (g)(3) of this clause.

(3) *Limited rights.* (i) Except as provided in paragraphs (c)(1)(ii) and (c)(1)(iv) through (c)(1)(ix) of this clause, the Government shall have limited rights in technical data--

(A) Related to items, components, or processes developed exclusively at private expense and marked with the limited rights legend prescribed in paragraph (g) of this clause; or

(B) Created exclusively at private expense in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes.

(ii) The Government will require a recipient of limited rights data for emergency repair or overhaul to destroy the data and all copies in its possession promptly following completion of the emergency repair/overhaul and to notify the Contractor that the data have been destroyed.

(iii) The Contractor, its subcontractors, and suppliers are not required to provide the Government additional rights to use, modify, reproduce, release, perform, display, or disclose technical data furnished to the Government with limited rights. However, if the Government desires to obtain additional rights in technical data in which it has limited rights, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. The Contractor shall ensure that any resulting license agreement, made part of the contract, lists or describes all technical data for which the Government has been granted additional rights and specifies those additional rights.

(iv) The Contractor acknowledges that--

(A) The Government is authorized to release or disclose limited rights data to covered Government support contractors;

(B) The Government will notify the contractor of such release or disclosure;

(C) The Contractor or the party asserting restrictions in the limited rights legend may--

(1) Require each covered Government support contractor to enter into a nondisclosure agreement directly with the Contractor or the party asserting restrictions regarding use of the data; or

(2) Waive in writing the requirement for a nondisclosure agreement; and

(D) Any such nondisclosure agreement shall address the restrictions on the covered Government support contractor's use of the limited rights data as set forth in the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The nondisclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the nondisclosure agreement.

(4) *Restricted rights.* (i) The Government shall have restricted rights in other than commercial computer software the contractor must deliver, or that is otherwise provided, to the Government under this contract that was developed exclusively at private expense.

(ii) The Contractor, its subcontractors, or suppliers are not required to provide the Government additional rights in other than commercial computer software delivered or otherwise provided to the Government with restricted rights. However, if the Government desires to obtain additional rights in such software, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. The Contractor shall ensure that any resulting license agreement, made part of the contract, lists or describes all other than commercial computer software for which the Government has been granted additional rights and specifies those additional rights.

(iii) The Contractor acknowledges that--

(A) The Government is authorized to release or disclose restricted rights computer software to covered Government support contractors;

(B) The Government will notify the Contractor of such release or disclosure;

(C) The Contractor or the party asserting restrictions in the restricted rights legend may--

(1) Require each such covered Government support contractor to enter into a nondisclosure agreement directly with the Contractor or the party asserting restrictions regarding the use of the software; or

(2) Waive in writing the requirement for a nondisclosure agreement; and

(D) Any such nondisclosure agreement shall address the restrictions on the covered Government support contractor's use of the restricted rights software as set forth in the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The nondisclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the nondisclosure agreement.

(5) *Specifically negotiated license rights.* The standard license rights granted to the Government under paragraphs (c)(1) through (c)(4) of this clause, including the period during which the Government shall have government purpose rights in technical data or computer software, may be modified by mutual agreement but shall not provide the Government lesser rights than provided in the definition of "limited rights" or restricted rights" of this clause. Any negotiated rights shall be identified in a license agreement made part of this contract.

(6) *Prior government rights.* Technical data or computer software that will be delivered, furnished, or otherwise provided to the Government under this contract, in which the Government has previously obtained rights shall be delivered, furnished, or provided with the preexisting rights, unless--

(i) The parties have agreed otherwise; or

(ii) The restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose the data or software have expired or no longer apply.

(7) *Release from liability.* The Contractor agrees to release the Government from liability for any authorized release or disclosure of technical data or computer software made in accordance with this clause or any negotiated license agreement. This release from liability for the Government also applies to releases or disclosures made by a third party who received the data or software from an authorized recipient. For any unauthorized use or disclosure by such third parties of technical data or computer software marked with restrictive legends, the Contractor agrees to seek relief solely from that party.

(d) *Contractor rights in technical data and computer software.* The Contractor retains all rights not granted to the Government.

(e) *Third party copyrighted data and software.* The Contractor shall not, without the written approval of the Contracting Officer, incorporate any copyrighted data or software in the technical data or computer software the contractor must deliver under this contract unless the Contractor is the copyright owner or has obtained license rights for the Government of the appropriate scope set forth in paragraph (c) of this clause, and has affixed a statement of the license or licenses obtained on behalf of the Government and other persons to the data transmittal document.

(f) *Identification and delivery of data to be delivered with restrictions on use, release, or disclosure.* (1) This paragraph does not apply to restrictions based solely on copyright.

(2) Except as provided in paragraph (f)(3) of this clause, technical data or computer software that the Contractor asserts should be furnished to the Government with restrictions on use, release, or disclosure are identified in an attachment to this contract (the Attachment). The Contractor shall not deliver any data or software with restrictive markings unless the data are listed on the Attachment.

(3) In addition to the assertions made in the Attachment, the Contractor may identify other assertions after award when based on new information or inadvertent omissions unless the inadvertent omissions would have materially affected the source selection decision. The Contractor shall submit such identification and assertions to the Contracting Officer as soon as practicable prior to the scheduled date for delivery of the data or software, in the following format, and signed by an official authorized to contractually obligate the Contractor:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software			
The Contractor asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted--			
Technical Data or Computer Software to be Furnished With Restrictions ¹	Basis for Assertion ²	Asserted Rights Category ³	Name of Person Asserting Restrictions ⁴
(LIST)	(LIST)	(LIST)	(LIST)
==	==	==	==
¹ If the assertion is applicable to items, components or processes developed at private expense, identify both the data and each such item, component, or process.			
² Generally, the development of an item, component, process, or computer software at private expense, either exclusively or partially, is the only basis for asserting restrictions on the Government's rights to use, release, or disclose computer software or technical data related to such items, components, or processes. Indicate whether development was exclusively or partially at private expense. If development was not at private expense, enter the specific reason for asserting that the Government's rights should be restricted.			
³ Enter asserted rights category (e.g., rights in SBIR/STTR data generated under another contract, limited rights, restricted rights, or government purpose rights under this or a prior contract, or specifically negotiated licenses).			
⁴ Corporation, individual, or other person, as appropriate.			
Date ==			

Printed Name and Title _____

Signature _____

(End of identification and assertion)

(4) When requested by the Contracting Officer, the Contractor shall provide sufficient information to enable the Contracting Officer to evaluate the Contractor's assertions. The Contracting Officer reserves the right to add the Contractor's assertions to the Attachment and validate any listed assertion, at a later date, in accordance with the procedures in the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract.

(g) *Marking requirements.* The Contractor, and its subcontractors or suppliers, may only assert restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose technical data or computer software the Contractor must deliver under this contract by marking the deliverable data or software subject to restriction. Except as provided in paragraph (g)(7) of this clause, only the following legends are authorized under this contract: the government purpose rights legend at paragraph (g)(3) of this clause; the limited rights legend at paragraph (g)(4) of this clause; the restricted rights legend at paragraph (g)(5) of this clause; the special license rights legend at paragraph (g)(6) of this clause; and a notice of copyright as prescribed under 17 U.S.C. 401 or 402.

(1) *General marking instructions.* The Contractor, or its subcontractors or suppliers, shall conspicuously and legibly mark the appropriate legend on all technical data or computer software that qualify for such markings. The authorized legends shall be placed on the transmittal document or storage container and, for printed material, each page of the printed material containing technical data or computer software for which restrictions are asserted. When only portions of a page of printed material are subject to the asserted restrictions, such portions shall be identified by circling, underscoring, with a note, or other appropriate identifier. Technical data or computer software transmitted directly from one computer or computer terminal to another shall contain a notice of asserted restrictions. For software that will or might be used in combat or situations that simulate combat conditions, the contractor shall not insert instructions that interfere with or delay the operation of computer software in order to display a restrictive rights legend or other license statement at any time prior to or during use of the computer software, or otherwise cause such interference or delay, unless the Contracting Officer's written permission to deliver such software has been obtained prior to delivery. Reproductions of technical data or computer software or any portions thereof subject to asserted restrictions shall also reproduce the asserted restrictions.

(2) *Omitted markings.* (i) Technical data or computer software delivered or otherwise provided under this contract without restrictive markings will be presumed to have been delivered with unlimited rights. To the extent practicable, if the Contractor has requested permission (see paragraph (g)(2)(ii) of this clause) to correct an inadvertent omission of markings, the Contracting Officer will not release or disclose the technical data or computer software pending evaluation of the request.

(ii) The Contractor may request permission to have conforming and justified restrictive markings placed on unmarked technical data or computer software at its expense. The request must be received by the Contracting Officer within 6 months following the furnishing or delivery of such technical data or computer software, or any extension of that time approved by the Contracting Officer. The Contractor shall--

(A) Identify the technical data or computer software that should have been marked;

(B) Demonstrate that the omission of the marking was inadvertent, the proposed marking is justified and conforms with the requirements for the marking of technical data or computer software contained in this clause; and

(C) Acknowledge, in writing, that the Government has no liability with respect to any disclosure, reproduction, or use of the technical data or computer software made prior to the addition of the marking or resulting from the omission of the marking.

(3) *Government purpose rights markings.* Technical data or computer software delivered or otherwise furnished to the Government with government purpose rights shall be marked as follows:

GOVERNMENT PURPOSE RIGHTS

Contract Number _____

Contractor Name _____

Contractor Address _____
Expiration Date _____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these technical data or computer software are restricted by the government purpose rights license in the DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause contained in the above identified contract. No restrictions apply after the expiration date shown above. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(4) *Limited rights markings.* Data delivered or otherwise furnished to the Government with limited rights shall be marked as follows:

LIMITED RIGHTS

Contract Number _____
Contractor Name _____
Contractor Address _____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these technical data are restricted by the limited rights license in the DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause contained in the above identified contract. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such data must promptly notify the above named Contractor.

(End of legend)

(5) *Restricted rights markings.* Software delivered or otherwise furnished to the Government with restricted rights shall be marked as follows:

RESTRICTED RIGHTS

Contract Number _____
Contractor Name _____
Contractor Address _____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose this software are restricted by the restricted rights license in the DFARS 252.227-7014, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, clause contained in the above identified contract. Any reproduction of computer software or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such software must promptly notify the above named Contractor.

(End of legend)

(6) Special license rights markings. (i) Technical data or computer software in which the Government's rights stem from a specifically negotiated license shall be marked as follows:

SPECIAL LICENSE RIGHTS

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these data or software are restricted by Contract Number [Insert contract number] ____, License Number [Insert license identifier] _____. Any reproduction of technical data, computer software, or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(ii) For purposes of this clause, special licenses do not include government purpose license rights acquired under a prior contract (see paragraph (c)(5) of this clause).

(7) *Preexisting data or software markings.* If the terms of a prior contract or license permitted the Contractor to restrict the Government's rights to use, modify, reproduce, release, perform, display, or disclose technical data or computer software deliverable under this contract, and those restrictions are still applicable, the Contractor may mark such data or software with the appropriate restrictive legend for which the data or software qualified under the prior contract or license. The Contractor shall follow the marking procedures in paragraph (g)(1) of this clause.

(h) *Contractor procedures and records.* Throughout performance of this contract, the Contractor and its subcontractors or suppliers that will deliver technical data or computer software with other than unlimited rights, shall--

(1) Have, maintain, and follow written procedures sufficient to assure that restrictive markings are used only when authorized by the terms of this clause; and

(2) Maintain records sufficient to justify the validity of any restrictive markings on technical data or computer software delivered under this contract.

(i) *Removal of unjustified and nonconforming markings--*(1) *Unjustified technical data markings.* The rights and obligations of the parties regarding the validation of restrictive markings on technical data or computer software delivered or to be delivered under this contract are contained in the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract. Notwithstanding any provision of this contract concerning inspection and acceptance, the Government may ignore or, at the Contractor's expense, correct or strike a marking if, in accordance with the procedures in the Validation of Asserted Restrictions clause of this contract, a restrictive marking is determined to be unjustified.

(2) *Nonconforming technical data or computer software markings.* A nonconforming marking is a marking placed on technical data or computer software delivered or otherwise furnished to the Government under this contract that is not in the format authorized by this contract. Correction of nonconforming markings is not subject to the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract. If the Contracting Officer notifies the Contractor of a nonconforming marking and the Contractor fails to remove or correct such marking within 60 days, the Government may ignore or, at the Contractor's expense, remove or correct any nonconforming marking.

(j) *Relation to patents.* Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government under any patent.

(k) *Limitation on charges for rights in technical data, computer software, or computer software documentation.* (1) The Contractor shall not charge to this contract any cost, including, but not limited to, license fees, royalties, or similar charges, for rights in technical data, computer software, or computer software documentation the Contractor must deliver under this contract when--

(i) The Government has acquired, by any means, the same or greater rights in the data or software; or

(ii) The data or software are available to the public without restrictions.

(2) The limitation in paragraph (k)(1) of this clause--

(i) Includes costs charged by a subcontractor or supplier, at any tier, or costs incurred by the Contractor to acquire rights in subcontractor or supplier technical data, computer software, or computer software documentation, if the subcontractor or supplier has been paid for such rights under any other Government contract or under a license conveying the rights to the Government; and

(ii) Does not include the reasonable costs of reproducing, handling, or mailing the documents or other media in which the technical data, computer software, or computer software documentation will be delivered.

(l) *Applicability to subcontractors or suppliers.* (1) The Contractor shall ensure that the rights afforded its subcontractors and suppliers under 10 U.S.C. 3771-3775, 10 U.S.C. 3781-3786, and the identification, assertion, and delivery processes of paragraph (f) of this clause are recognized and protected.

(2)(i) Except as provided in paragraph (l)(2)(ii) of this clause, the Contractor shall include this clause in any subcontract or contractual instrument under which technical data or computer software will be obtained from a subcontractor or supplier for delivery to the Government. This requirement applies to technical data or software related to other than commercial products or commercial services, or related to commercial products or commercial services developed in any part with Government funds. The Contractor shall also require its subcontractors and suppliers to include this clause, without alteration except to identify the parties, in any contractual instrument under which technical data or computer software will be obtained from a subcontractor or supplier for delivery to the Government. This clause will govern the technical data related to an other than commercial product or service or to any portion of a commercial product or commercial service that was developed in any part at Government

expense, and the clause at 252.227-7990 will govern the technical data related to any portion of a commercial item that was developed exclusively at private expense. No other clause shall be used to expand or reduce the Government's, the Contractor's, or a higher-tier subcontractor's or supplier's rights in a subcontractor's or supplier's technical data, computer software, or computer software documentation.

(ii) The Contractor shall use the clause at DFARS 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, to govern technical data, computer software, or computer software documentation that is SBIR/STTR data.

(3) Technical data, computer software, or computer software documentation a subcontractor or supplier must deliver shall normally be delivered to the next higher-tier contractor, subcontractor, or supplier. However, when there is a requirement in the prime contract for data which may be submitted with other than unlimited rights by a subcontractor or supplier, then said subcontractor or supplier may fulfill its requirement by submitting such data or software directly to the Government, rather than through a higher-tier contractor, subcontractor, or supplier.

(4) The Contractor and higher-tier subcontractors or suppliers shall not use the award of a contract as economic leverage to obtain rights in technical data, computer software, or computer software documentation from their subcontractors or suppliers.

(5) In no event shall the Contractor use its obligation to recognize and protect subcontractor or supplier rights in technical data, computer software, or computer software documentation as an excuse for failing to satisfy its contractual obligations to the Government.

(End of clause)

Section J - List of Attachments

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	Performance Work Statement	Performance Work Statement		08 May 2026
02	Contract Admin Plan			07 May 2026
03	QASP Non-Commercial			07 May 2026
04	DD-254	Contract Security Classification Specification (DD 254)		30 Apr 2026
05	Past Performance Form			30 Apr 2026

Section K - Representations, Certification, & Other Statements

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		

DFARS Clauses Incorporated by Full Text

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation. (Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it [] does, [] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

This section applies only to Step Two of the solicitation and evaluation process identified in Section A of this solicitation. Quotations from only those contractors determined to be viable in accordance with Step One submission instructions and that were invited to submit a non-cost quote and cost quote as part of Step Two shall be considered. Any quotation received from a contractor that did not submit a Step One submission, that was determined to be nonviable during the Step One evaluation process, and/or that was not invited to submit a non-cost quote and cost quote as part of Step Two will not be evaluated and will be immediately disqualified for award consideration under the solicitation.

SUBMISSION OF QUOTES (BEST VALUE/TRADE-OFF)

I. GENERAL

All Step-Two quotes shall be submitted to the POC no later than 1200 EST on 29 May 2026.

The Contractor shall submit all offers to the POC via e-mail to tara.y.baker.civ@us.navy.mil so that it is received no later than the date and time specified for receipt of quotations submitted in response to this solicitation. Late quotations (i.e., quotations not received by the POC by the date and time specified for the receipt of quotations) will not be evaluated and are not eligible for award. In addition to instructions to quoters contained elsewhere in this solicitation, the following instructions are provided. Initial quotes and any modifications thereto are to be submitted to the POC on or before the closing date and time specified for receipt of quotations submitted in response to this solicitation.

Quoters shall submit their quotes in two separate volumes as follows:

Volume I Non-Cost Quote

Volume II Cost Quote

In addition, quotes consist of and shall include the following items as part of Volume II:

Solicitation cover sheet with appropriate blocks completed by the quoter

Solicitation pricing pages completed by the quoter

Acknowledgement of solicitation amendment(s) pursuant to FAR 52.215-1 (if not previously acknowledged).

The completion and submission of the above items will constitute a quote and will be considered the quoter's unconditional assent to the terms and conditions of this solicitation and any attachments and/or exhibits hereto. Alternate quotes are not authorized. An objection to any of the terms and conditions of the solicitation will constitute a deficiency, which will make the quote ineligible for award. No deviations from the estimated Level of Effort included in Section B are permitted.

Volume I Non-Cost Quote

This volume shall address Performance Approach and Past Performance, and include all information required for quote evaluation. This volume of the quote shall exclude any pricing/cost information that would reveal the total costing/pricing detailed in Volume II of the quote. Each page of each copy should include the following legend:

Source Selection Information - See FAR 2.101 and 3.104

Volume II Cost/Price Quote

This volume shall include the completed solicitation documents and a complete and detailed price/cost breakdown with all supporting information. Each page of each copy should include the following legend:

Source Selection Information - See FAR 2.101 and 3.104

IMPORTANT NOTES:

(1) Quoters shall respond to all requirements of the solicitation document. Quoters are cautioned not to alter the solicitation.

(2) In the event any person who is not a bona fide employee of the quoter participated in the creation, formulation, or writing of any portion of the quote, a certificate to this effect shall be included in the quote which shall be signed by an officer of the quoter. Such certificate shall identify the name of the person who is not a bona fide employee, that person's employment capacity, the name of the person's firm, the relationship of that firm to the quoter, and the portion of the quote in which the person participated.

II. REQUIREMENTS FOR QUOTE CONTENT

(1) The inclusion of CLASSIFIED data in any part of the quote is strictly prohibited. DO NOT include CLASSIFIED data in the quote.

(2) Introduction and Purpose - This section specifies the format that quoters should use in quotes submitted in response to this solicitation. The intent is not to restrict the quoters in the manner in which they will perform their work but rather to ensure a certain degree of uniformity in the format of the quotes for evaluation purposes.

(3) Each volume should contain the following items in addition to the other information required by this solicitation:

Cover: The cover should indicate the following:

Title of the quote Volume Number (I or II)

Solicitation number

Name and address of quoter

Table of Contents: The table of contents should provide detail sufficient to allow the important elements to be easily located.

(4) Requirements for Style: Each quoter shall submit a quote that clearly and concisely sets forth the contractor's response to the requirements of the solicitation. Unnecessary elaboration or other presentations beyond that sufficient to present a complete and effective quote are not desired and may be construed as an indication of the quoter's lack of cost consciousness. Elaborate artwork and expensive visual or other presentation aids are neither necessary nor desired. The quote shall contain all the pertinent information in sufficient detail in the one area of the quote where it contributes most critically to the discussion. When necessary, the quoter shall refer to the initial discussion and identify its location within its quote.

(5) Page Limitations: Volume I, "Non-Cost Quote," is limited to a maximum of twenty (20) pages in length inclusive of any charts, diagrams, and/or other graphics. Each "page" is defined as one sheet, 8 1/2 " x 11", with at least one inch margins on all sides, using a font with a point size of 12 or greater (e.g., "Times New Roman" style with 12 point font). Lines shall, at a minimum, be single-spaced. Pages shall be consecutively numbered. Multiple pages or double pages will count as an equivalent number of 8 1/2" x 11" pages. The cover sheet, table of contents (not to exceed one page per volume), and dividers will not count toward the page limit. The one exception to the font size requirement shown above is that the "Past Performance Information Forms" may be completed with a point size of 10 or greater. Pages submitted in excess of the page limitations described above will not be evaluated. Volume II, "Price/Cost Quote," is not page limited.

III. QUOTE CONTENT

(1) Volume I - Non-Cost Quote

Volume I of the quote shall include all information required for the evaluation of the quoter's Non-Cost quote. It shall exclude any reference to the price aspects of the quote.

The Non-Cost evaluation factors are listed below in descending order of importance. Performance Approach is more important than Past Performance, and all factors, when combined, are significantly more important than Price.

Performance Approach

Past Performance

(a) Performance Approach

The quoter shall provide in detail a performance approach that will successfully accomplish the requirements of the solicitation, including the PWS. The quoter should describe their transition support plan (See PWS, para 4.2 Transition Support), which should include a detailed methodology of how the transition will occur. Quoters should address the extent to which they have provided personnel with SECRET security clearances. The quoter should describe any risks associated with the solicitation, including the PWS and any risks associated with implementation of the quoter's performance approach; describe any techniques and actions to mitigate such risks; and explain whether the techniques and actions identified for risk mitigation have been successfully used by the quoter. The quoter should provide any other information the quoter considers relevant to the solicitation.

(b) Past Performance

The quoter shall demonstrate relevant past performance or affirmatively state that it possesses no relevant past performance. Relevant past performance is performance under contracts or efforts (within the past five years) that is of similar scope and magnitude to that which is described in the solicitation. To demonstrate its past performance, the quoter shall identify up to three of its most relevant contracts or efforts within the past five years. The quoter shall complete a "Past Performance Information Form" for each reference submitted. The quoter should provide a detailed explanation demonstrating the relevance of the contracts or efforts to the requirements of the solicitation. The quoter should also provide information on any problems encountered on the identified contracts or efforts and the quoter's corrective actions (if applicable). The quoter may identify contracts or efforts for its proposed subcontractors among the three past performance references provided in its quotation. If past performance references are provided for a subcontractor, the quoter's quotation should detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform. It is the contractor's responsibility to adequately explain the relevance of a reference provided for a subcontractor's past performance to the effort that the subcontractor is proposed to perform under the solicitation.

The "Past Performance Information Form" is an attachment to the solicitation. The forms will count toward the Volume I page limit described above. For additional information regarding a particular reference beyond that which will fit on the form, the quoters may continue onto additional sheets of paper. Such continuation sheet (s) for submitted references will count toward the Volume I page limit. Only a single set of up to three references shall be submitted.

The Past Performance evaluation will result in a past performance confidence assessment.

The quoter should address its past performance in complying with requirements of the clauses at FAR 52.219-8, "Utilization of Small Business Concerns," and 52.219-9, "Small Business Subcontracting Plan."

(2) Volume II - Cost Quote

Volume II shall include the completed solicitation documents and a complete and detailed price/cost breakdown with all supporting documentation. For purposes of developing a cost quote, quoters shall quote the level of effort specified in Section B of this solicitation. The quoter's cost quote shall not deviate from the level of effort set forth in Section B of the solicitation. The Cost quote shall include all elements of cost and such other cost information as considered appropriate to support the quote. The burden of proof for establishing the realism of all proposed costs rests with the quoter. The cost and pricing information shall be completed in accordance with the following:

(a) As part of the Cost quote, the quoter shall support the existence of an adequate accounting system by one of the following two methods: (1) Contract Number and contact information for the Government Contracting Officer for a Cost-Plus-Fixed-Fee-type contract (other than the quoter's SeaPort-NxG contract) where the quoter was a Prime (vice subcontractor); or (2) if an organization has been audited by the Defense Contract Audit Agency (DCAA) or another Federal Agency, the quoter shall provide a copy of the review that demonstrates that the quoter's accounting system is adequate to hold a Cost-Plus-Fixed-Fee type contract.

(b) Separate cost and pricing information shall be submitted for each time period specified in the pricing pages of the solicitation.

(c) Supporting data including labor rates and hours, burden rates, travel charges, and "other direct costs" used in developing the price/cost breakdown shall be furnished. The supporting data for "other direct costs" shall include an itemization of those costs and an explanation and justification for each cost so itemized.

(d) Uncompensated Overtime. Quoters shall clearly state whether they are proposing on the basis of uncompensated overtime, and, if so, for each applicable labor category set forth the average number of uncompensated overtime hours per week. Uncompensated overtime is not encouraged as work schedules averaging more than 40 hours per week can, over a period of time, lead to degradation of performance. Pursuant to FAR 52.237-10, "Identification Uncompensated Overtime," quoters are reminded (1) "Whenever there is uncompensated overtime, the adjusted hourly rate (including uncompensated overtime), rather than the hourly rate, shall be applied to all proposed hours, whether regular or overtime hours," and (2) "All proposed labor hours subject to the adjusted hourly rate (including uncompensated overtime) shall be identified as either regular or overtime hours, by labor categories, and described at the same level of detail. This is applicable to all quoters whether the labor hours are at the prime or subcontract level. This includes uncompensated overtime hours that are in indirect cost pools for personnel whose regular hours are normally charged direct." In that FAR 52.237-10 requires that the quoter's accounting practices used to estimate uncompensated overtime be consistent with the quoter's cost accounting practices used to accumulate and report uncompensated overtime hours, each quoter quoting on the basis of uncompensated overtime should provide evidence of that consistency. Also, pursuant to FAR 52.237-10, each quoter quoting on the basis of uncompensated overtime is required to include a copy of its policy addressing uncompensated overtime with its cost quote. To the extent that a quoter is quoting on the basis of uncompensated overtime, the quoter shall explain why the use of uncompensated overtime will not degrade the level of technical expertise required to fulfill the Government's requirements.

(e) Substantiation of Direct Labor Rates: Quoters must furnish documentation to verify the realism of quoted direct labor rates. Examples of acceptable documentation include payroll data, actual billing records showing direct labor rates of named employees, signed letters of intent, or current DCMA Forward Pricing Rate Agreements (FPRA), Forward Pricing Rate Proposal (FPRP), Provisional Billing Rate Approval or Provisional Billing Rate Submission, whichever is most recent. To the extent that a quoter is quoting a subcontractor on a cost-reimbursement basis, the documentation substantiating the accuracy of the subcontractor's quoted direct labor rates is also requested. If personnel are quoted with signed letters of intent, the letters should be included as attachments to the cost quote (Volume II). For the purpose of evaluating the cost quote, the quoter shall map its internal corporate labor categories to the solicitation labor categories. If labor category averages are used as consistent with the quoter's accounting practice and approved by DCAA, provide a detailed narrative and include the calculation used to establish the category average.

If quoting rates that do not fall within one of the above criteria, provide a detailed, comprehensive description of the methodology used to establish the quoted direct rate. The description shall include both the source where the rate was obtained and a description of how the resulting rate was calculated. Merely stating that a "salary survey" or "market survey" was used is generally not sufficient.

(f) Substantiation of Indirect Costs: Documentation verifying the accuracy of quoted indirect rates is required. This may include a current FPRA, current Forward Pricing Rate Recommendation (FPRR), or, if available, historical indirect rate data for the preceding three fiscal years. If none of the documentation identified herein is available, historical indirect data, to include provisional rates, actual incurred rates, and annual incurred cost claims (if submitted), shall be provided for the three years prior to the quoter's current fiscal year. This data should include all of the quoter's indirect rates as applicable to the quoter's accounting system. If quoting indirect rates significantly different from recent incurred rates, quoters shall include a detailed explanation and supporting cost data (including budget information). If the quoter is quoting subcontracts on other than CPFF basis, the quoter should submit information as to whether the rates for the subcontractors are fixed based on a firm bilateral agreement with the subcontractor or merely quoted. In addition, the quoter shall explain why it believes the subcontractor can perform at those rates.

(g) For pricing purposes, the following ratios of Contractor facility and Government facility labor performance are estimated for all labor categories:

Contractor facility: 0%

Government facility: 100%

(h) For the purpose of preparing a cost/price quote, the quoter shall assume that the basic period of performance will be from 16 Jul 2026 through 15 Jul 2027 with five additional option periods as follows:

Base Period: 16 July 2026 - 15 July 2027

Option I: 16 July 2027 - 15 July 2028

Option II: 16 July 2028 - 15 July 2029
Option III: 16 July 2029 - 15 July 2030
Option IV: 16 July 2030 - 15 July 2031
Option (52.217-8): 16 July 2031 - 15 January 2032

(a) The quoter shall use the following amounts (plus applicable G&A and Material Handling) for ODCs. These estimated amounts will be used as common evaluation amounts for evaluation purposes only in determining the total evaluated cost of a quote. The estimated amounts (plus any applicable indirect costs) will be included in the resultant task order as not-to-exceed amounts under which the contractor will be permitted to invoice its actual costs.

ODCs: \$200,000 per year (Base Period & Option I/II/III/IV)
\$100,000 (FAR 52.217-8)

Any quoter having an accounting system which includes, within overhead or G&A, travel and/or material shall specifically state this fact within the cost quote.

(i) Any and all subcontracts identified in the non-cost quote shall be identified and priced in the cost quote. Subcontracts (regardless of dollar value) shall be adequately documented. Subcontractor cost breakdowns may be submitted separately.

Section M - Evaluation Factors for Award

This section applies only to Step Two of the solicitation and evaluation process identified in Section A of this solicitation. Quotations from only those contractors determined to be viable in accordance with Step One submission instructions and that were invited to submit a non-cost quote and cost quote as part of Step Two shall be considered. Any quotation received from a contractor that did not submit a Step One submission, that was determined to be nonviable during the Step One evaluation process, and/or that was not invited to submit a non-cost quote and cost quote as part of Step Two will not be evaluated and will be immediately disqualified for award consideration under the solicitation.

EVALUATION CRITERIA AND THE BASIS FOR AWARD

(1) The Government intends to award a task order resulting from this solicitation to the responsible quoter whose quote represents the best value after evaluation in accordance with the factors in the solicitation. The quote shall be in the form prescribed by, and shall contain a response to each of the areas identified in the Section L solicitation provision entitled "Submission of Quotes." The evaluation of quotes will consider the quoter's Non-Cost Quote to be significantly more important than the quoter's Cost Quote.

(2) The non-cost evaluation factors are listed below in descending order of importance. Performance Approach is more important than Past Performance.

Performance Approach

Past Performance

In considering the quoter's performance approach, the Government will evaluate the quoter's approach to successfully accomplish the requirements of the solicitation, including the PWS. The Government will analyze the quoter's approach to each aspect of performance approach provided in the quote content of Section L "Submission of Quotes" of the solicitation. Performance Approach is rated on how the quoter plans to perform the required effort and is forward-looking. The quoter's past performance without sufficient explanation of how it will be applied to the required effort is not relevant to, and may not be considered in the evaluation of, Performance Approach.

In considering the relevance of a quoter's past performance, the past performance references provided by the quoter will be evaluated individually and in the aggregate. The method of aggregation shall be at the discretion of the Government. If subcontractor past performance is provided as part of the three most relevant contracts or efforts, the subcontractor past performance will be given weight proportional to the scope and magnitude of the aspects of the work under the solicitation for which the subcontractor is proposed. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources including sources outside of the Government. When a quoter is determined to have relevant past performance, the quality of its relevant past performance will be evaluated. Quoters lacking relevant past performance history will not be evaluated favorably or unfavorably under the Past Performance factor. However, the quote of a quoter with no relevant past performance history, while not rated favorably or unfavorably for past performance, may not represent the most advantageous proposal to the Government and, thus, may be an unsuccessful quote when compared to the quotes of other quoters. The evaluation of Past Performance is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the quoter's past performance will be used as a means of evaluating how capable the quoter is of successfully accomplishing the requirements of the solicitation. In determining the rating for the Past Performance evaluation factor, the Government will give greater weight to the contracts or efforts which are determined to have greater relevance to the solicitation. A quoter whose past performance demonstrates either a low expectation or no expectation that the quoter will be able to successfully perform the required effort will be considered ineligible for award. Note: References that do not demonstrate relevant scope shall be considered to be not relevant overall.

For all non-cost factors (other than Past Performance), a quoter's quote must be determined to be Acceptable or better in order to be eligible for award. A rating that is less than "Acceptable" in any non-price evaluation factor and/or less than a "Satisfactory Confidence" rating in the Past Performance evaluation factor will render a quote ineligible for award consideration as submitted.

The Government reserves the right to award the task order to other than the quoter with the lowest evaluated CPFF or to other than the quoter with the highest rated non-cost quote.

The Government intends to evaluate quotes and award a task order without communications or interchanges with quoters. Therefore, the quoter's initial offer should contain the quoter's best terms from a cost and non-cost standpoint. However, the Contracting Officer may communicate with a contractor at any time during the Step Two process without regard to the FAR Subpart 15.2 and Subpart 15.3 rules concerning competitive range determinations and negotiations. The Contracting Officer may also identify the contractor that is most likely to provide the best value and hold interchanges solely with that contractor to finalize the task order and/or to obtain more favorable terms for the Government.

No deviations from the estimated Level of Effort provided in Section B are permitted.

For those quotations determined to be eligible for award based on their non-cost evaluation, costs will be evaluated on the basis of cost realism. The

method of cost realism analysis to be used is at the discretion of the Contracting Officer. Cost realism pertains to the quoter's ability to project costs which are realistic and reasonable and which indicate that the quoter understands the nature and scope of work to be performed. Labor will be evaluated on the basis of 100% straight time. Uncompensated overtime and uncompensated overtime rates will not be used in the evaluation. The quoter's cost quote will be evaluated for reasonableness and realism only if the quoter's non-cost quote is rated Acceptable or higher. A price realism (as distinguished from cost realism) will not be performed.

The method of evaluation used by the Contracting Officer is solely within the discretion of the Contracting Officer.

The Government has estimated other direct costs (ODCs) to be \$200,000 per year for the base period and Options I-IV, and \$100,000 for Option 52.217-8. The Government's estimated ODCs (plus applicable burden) shall be used for the purpose of evaluating the cost quote. Therefore, quoters shall use these estimates in preparing their cost/price quote. Application of material handling charges and/or G&A rates, as appropriate, will be allowed only if the contractor maintains separate accounts for such costs and will be in addition to the common evaluation amounts.

Options. The Government will evaluate quotes for award purposes by adding the total quoted costs for all options to the total quoted costs for the basic requirement. The Government may determine that a quote is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

A written notice of award or acceptance of a quote, mailed or otherwise furnished to the successful quoter within the time for acceptance specified in the quote, shall result in a binding contract without further action by either party.

Before the quote's specified expiration date/time, the Government may accept a quote (or part of a quote), whether or not there are interchanges after its receipt, unless a written notice of withdrawal is received before award.

Additionally, quoters are cautioned that the Government may decide not to evaluate the non-cost quote of a quoter whose quoted costs are significantly higher than the total quoted costs of another quoter that is rated acceptable or higher and the Contracting Officer determines that any technical superiority of the quote would not warrant the cost premium of the other quote and that, therefore, the quote could not be the best value.

Failure to provide required information regarding the adequacy of the quoter's accounting system will render the price/cost portion of the quote inferior to the quotes from quoters whose accounting systems have already been deemed adequate; subsequently, no further review will be performed on the quote.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.217-5	Evaluation of Options.	Jul 1990		